

		Plaintiff Harvey Quinn’s unopposed motion to deem admitted each Request for Admission, Set One, served on Defendant VPR Ops, LLC, is GRANTED. The court finds no substantial justification or other circumstances which make the imposition of the monetary sanctions unjust. The court awards plaintiff reasonable expenses in the amount of \$710.00, payable by defendant VPR Ops, LLC within 20 days’ notice of this order, unless the parties agree otherwise. C.C.P. §§ 2023.010, 2023.030, 2033.280, subd. (c). Plaintiff is ordered to give notice of all of the above.
107	Benitez vs. LAZ Parking California, LLC 2024-01441429	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Moises Benitez and Walter David Rodriguez’s Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 11/21/2024, Plaintiffs Moises Benitez and Walter David Rodriguez, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendants LAZ Parking California LLC and Alan Lazowski. (ROA #2.) Defendant answered on 2/14/2025. (ROA #23.) The operative complaint is the first amended complaint (FAC), filed on 1/13/2026 pursuant to the Court’s order granting leave, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #59.) On 2/13/2026, Plaintiffs filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action and PAGA Settlement Agreement and Class Notice and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$2,500,000. The GSA includes \$100,000 allocated for PAGA penalties. On 6/18/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #106.) Counsel then submitted supplemental materials, including an Amended Class Action and PAGA Settlement Agreement and Class Notice (“Amended Settlement Agreement”). (ROA #104, Exh. 1.) Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

		The Motion for Final Approval will be heard on 12/3/2026 at 2:00 p.m. in Department CX102, as this department hears Law & Motion matters on Thursdays. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists. Additionally, at the Final Approval hearing, each Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Each Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiffs to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
108	Gonzalez vs. U-HAUL CO. OF CALIFORNIA, 2021-01229571	Motion for Preliminary Approval of Class/PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Donny Sheldon, Thomas Gonzales, George Lyle, Diane Parker, Pamela Carroll, and Neisha Wayne's Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 11/2/2021, Plaintiff Thomas Gonzales, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant U-Haul Co. of California. (ROA #2.)